

5.

CASE #	CASE NAME	HEARING NAME
CVRI2302814	PORTERO COMMERCIAL, LLC vs SOUTHLAND EQUITIES, LLC	RULING ON EQUITABLE ISSUES

Tentative Ruling:

The Court rules as follows on the remaining equitable issues following the jury verdict.

1. Portero's requests for equitable relief are barred by the doctrine of unclean hands and the requested relief would be directly contradicted by the jury findings. As such, all equitable relief sought by Plaintiff is denied.
2. Defendants/Cross-Complainants have proven their UCL claims and equitable relief is appropriate.
3. The Court finds that Scott Krentel, an individual, acted as the alter ego of Portero Commercial LLC.
4. The Court notes that while Portero has filed a Chapter 11 bankruptcy that effectively freezes its assets, the same is not true for Scott Krentel. In light of the alter ego finding, the Court orders a temporary freeze of the assets of Scott Krentel. In the event that the bankruptcy stay is removed, then a freeze shall also be placed on Portero.
5. The Court orders that Portero and Scott Krentel provide an accounting.
6. The jury found that interest was appropriate for the damages awarded. The Court is to determine the date from which interest shall accrue. The Court finds that the appropriate date for interest to accrue at the rate of 7% is 1/1/2022.

Defendants/Cross-Complainants are to prepare a final judgment in accordance with this ruling and the jury verdict within 15 days.